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Case Number: 24TRCV02494 Hearing Date: September 1, 2026 Dept: P

Motion for Attorney's Fees and Costs

Moving Party: Plaintiff Karon Michelle Crewsblackburn

Responding Party: Defendant Ford Motor Company

RULING

The court considered the moving papers, opposition, and reply. Plaintiff's Motion for Attorney's Fees and Costs is GRANTED in the total amount of \$19,547.56, comprised of \$16,869.50 in previously incurred fees, \$1,487.50 in anticipated fees regarding the instant motion, and \$1,190.56 in costs.

PROCEDURAL BACKGROUND

On July 26, 2024, Plaintiff Karon Michelle Crewsblackburn ("Plaintiff") filed a complaint against Defendant Ford Motor Company ("Ford") and DOES 1 through 50, inclusive, alleging five causes of action for: (1) Violation of Civil Code Section 1793.2(d); (2) Violation of Civil Code Section 1793.2(b); (3) Violation of Civil Code Section 1793.2(a)(3); (4) Breach of Express Written Warranty; and (5) Breach of the Implied Warranty of Merchantability.

On January 16, 2026, Plaintiff filed a Notice of Settlement of Entire Case.

On March 30, 2026, Plaintiff filed a memorandum of costs.

On April 28, 2026, Plaintiff filed the instant motion. On August 19, 2026, Ford filed an opposition. On August 25, 2026, Plaintiff filed a reply.

FACTUAL BACKGROUND

Plaintiff alleges that on August 9, 2021, Plaintiff purchased a 2019 Ford Flex (the "Subject Vehicle"). (Complaint, ¶ 6.) Plaintiff alleges that in connection with her purchase of the Subject Vehicle, Plaintiff received an express written warranty from Ford. (Complaint, ¶ 10.) Plaintiff alleges that after she took possession of the Subject Vehicle and during the warranty period, the

Subject Vehicle contained or developed defects. (Complaint, ¶ 11.) Plaintiff alleges that Ford and its representatives were unable to repair the Subject Vehicle within a reasonable number of repair attempts. (Complaint, ¶ 15.)

LEGAL STANDARD

Where the buyer of a vehicle prevails in an action under the Song-Beverly Act, the buyer “shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney’s fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action.” (Civ. Code, Section 1794(d)). The buyer has “the burden of showing that the fees incurred were reasonably necessary to the conduct of the litigation, and were reasonable in amount.” (Robertson v. Fleetwood Travel Trailers of California, Inc. (2006) 144 Cal.App.4th 785, 817.)

“A trial court assessing attorney fees begins with a touchstone or lodestar figure, based on the ‘careful compilation of the time spent and reasonable hourly compensation of each attorney ... involved in the presentation of the case.’” (Christian Research Institute v. Alnor (2008) 165 Cal.App.4th 1315, 1321.) “The reasonableness of attorney fees is within the discretion of the trial court, to be determined from a consideration of such factors as the nature of the litigation, the complexity of the issues, the experience and expertise of counsel and the amount of time involved. The court may also consider whether the amount requested is based upon unnecessary or duplicative work.” (Wilkerson v. Sullivan (2002) 99 Cal.App.4th 443, 448.)

DISCUSSION

Moving Party's Argument

Plaintiff seeks a total award of \$24,311.06, consisting of \$20,495.50 in previously incurred attorney's fees, \$2,625.00 in anticipated attorney's fees, and \$1,190.56 in costs. Plaintiff argues that her counsel's hourly rates are reasonable based on court orders approving Plaintiff's counsel's hourly rates for their prosecution of Song-Beverly actions and based on the Laffey Matrix. Plaintiff argues that her counsel's 52.5 hours billed are reasonable in light of Ford's denial of liability. Plaintiff argues that an award of \$2,625.00 in anticipated attorney's fees is warranted based on the approximately five hours Plaintiff's counsel will spend reviewing Ford's opposition, preparing a reply, and attending the hearing on the instant motion. Finally, Plaintiff argues that she is entitled to costs because Plaintiff filed a memorandum of costs and Ford did not file a timely motion to tax costs.

Opposing Party's Argument

Ford argues that the court should deny Plaintiff's motion because the fees sought are excessive. In the alternative, Ford argues that Plaintiff should be awarded no more than \$12,171.50 in attorney's fees. Ford argues that this was a straightforward and routine lemon law action which involved the use of boilerplate templates. Ford argues that Plaintiff's counsel's hourly rates are unreasonable and argues that Plaintiff's evidence in support of counsel's requested rates is insufficient. Next, Ford argues that Plaintiff's counsel billed excessive hours for reviewing, analyzing, and drafting standardized documents. Finally, Ford argues that Plaintiff's request for anticipated attorney's fees is improper because Plaintiff's counsel has not yet performed those tasks.

Reply Argument

Plaintiff argues that Ford has failed to meet its burden because Ford relies on general arguments to challenge Plaintiff's counsel's time billed, rather than analyzing specific entries in the billing records. Plaintiff argues that her counsel's time billed is reasonable in light of Ford's vigorous defense of Plaintiff's claims. Plaintiff argues that her counsel's billing entries are not vague, counsel's time spent strategizing is compensable and reasonable, Plaintiff is entitled to recover for paralegal time, and Plaintiff's counsel's anticipated time to be incurred pertaining to this instant motion is reasonable. Finally, Plaintiff argues that Ford has not challenged any of Plaintiff's requested costs.

Merits of the Motion

A. Entitlement to Fees

The Song-Beverly Act provides that a buyer who prevails in their action is entitled to an award “as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney’s fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action.” (Civ. Code Section 1794(d).)

Here, Plaintiff filed a Notice of Settlement of Entire Case on January 16, 2026. A copy of the parties’ Section 998 agreement is attached as Exhibit 2 to Plaintiff’s counsel’s declaration. (Shumake Decl., ¶ 10; Exh. 2.)

Therefore, the court finds that Plaintiff is entitled to an award of attorney’s fees.

B. Reasonableness of Rates

1. Hourly Rates

Here, Plaintiff’s counsel declares that the five attorneys staffed on this matter bill at the following rates: senior associate attorney Carrie Shumake - \$525/hr; senior partner Jordan G. Cohen - \$560/hr; associate attorney Marisa Mittelman - \$425/hr; associate attorney Ashley B. Sura - \$435/hr; and associate attorney Bobby C. Walker - \$440/hr. (Shumake Decl., ¶¶ 11-15.) Plaintiff’s counsel declares that the eight paralegals staffed on this matter each bill at the rate of \$215/hr. (Shumake Decl., ¶ 16.)

Ford challenges Plaintiff’s counsel’s requested hourly rates on the grounds that Plaintiff has failed to provide sufficient support.

In assessing the reasonableness of hourly billing rates, “the court may rely on its own knowledge and familiarity with the legal market, as well as the experience, skill, and reputation of the attorney requesting fees [citation], the difficulty or complexity of the litigation to which that skill was applied [citations], and affidavits from other attorneys regarding prevailing fees in the community and rate determinations in other cases.” (569 East County Boulevard LLC v. Backcountry Against the Dump, Inc. (2016) 6 Cal.App.5th 426, 437.)

The court finds that requested rates for attorneys who are working on a contingency basis do not provide sufficient reference under the lodestar methodology. This is because the “charged” rates are never borne by a paying client. As a consequence, the court balances the requested rates with legal rates for similar areas of litigation involving straightforward legal claims such as this case which are actually paid by a client. Having conducted that analysis, the court exercises its discretion to reduce Carrie Shumake’s requested rate to \$425/hr, Jordan G. Cohen’s requested rate to \$500/hr, Marisa Mittleman’s requested rate to \$415/hr, Ashley B. Sura’s requested rate to \$395/hr, and Bobby C. Walker’s requested rate to \$400/hr. In so doing, the court assesses the type of litigation, counsel’s experience, and this court’s knowledge of the prevailing hourly rate within the local legal community.

Regarding the eight paralegals staffed on this matter, the court exercises its discretion to reduce each paralegal’s requested rate to \$150 per hour.

2. Excessive Hours

Ford challenges Plaintiff's counsel's billing entries pertaining primarily to drafting revisions to Plaintiff's complaint and drafting discovery-related documents, performing research and reviewing documents, and analyzing documents.

In challenging attorneys' fees as excessive because too many hours of work are claimed, it is the burden of the challenging party to point to the specific items challenged, with sufficient arguments and citations to the evidence. (Premier Medical Management Systems, Inc. v. California Ins. Guaranty Assoc. (2008) 163 Cal.App.4th 550, 564.) General arguments that fees claimed are excessive, duplicative, or unrelated do not suffice. (Ibid.)

First, Ford challenges the June 21, 2024 entry by paralegal Melanie Say for "call to/from Client – [redacted]." (Shumake Decl., Exh. 8, p. 1.) The court finds that client communication is essential to the litigation process and declines to reduce Plaintiff's counsel's total hours billed on this basis.

Next, Ford objects to the 0.6 hours billed by attorney Jordan Cohen for drafting revisions to Plaintiff's complaint, on the grounds that this was a routine lemon law matter. Ford also objects to the 0.4 hours billed by Jordan Cohen for analyzing client documents. The court agrees that the time billed here is excessive given Plaintiff's counsel's use of templates and the routine nature of this case and exercises its discretion to reduce Jordan Cohen's total hours billed by 0.3 hours.

The court has reviewed paralegal Natalie Sanchez's September 23 and 27, 2024 billing entries for beginning to draft the notice of deposition for Ford's PMQ and for researching common problems regarding the Subject Vehicle, and reviewing the repair order history and repair orders. Due to the routine nature of this matter, the court exercises its discretion to reduce Natalie Sanchez's total hours billed by 0.2 hours.

Next, Ford objects to the total of 2.8 hours billed by paralegal Richard Ruiz for "draft[ing] CMS, NORA, and NPFJ," "gather[ing] all documents from all sources re PI's document production," "audit[ing] and redact[ing] all documents in prep for PI's Document production," "finaliz[ing] discovery production: downloaded additional documents – resized redacted batesnumbered added to pleading sent to atty," and "review[ing], format[ing], finaliz[ing], and draft[ing] Proof of Service." (Shumake Decl., Exh. 8, pp. 5, 8-9, 11.)

The court finds that the entry for "draft[ing] CMS, NORA, and NPFJ" is vague, and excessive time was billed for gathering documents, downloading documents, and drafting the proof of service. Thus, the court exercises its discretion to reduce Richard Ruiz's total hours billed by 1.2 hours.

Next, Ford challenges the total of 6.0 hours billed by attorney Marisa Mittelman for reviewing repair orders, recalculating the repurchase value of the Subject Vehicle and speaking to Jordan Cohen, reviewing repair history and damages calculations, updating the repair chronology, and drafting Plaintiff's discovery responses and objections. Due to Plaintiff's counsel's use of templates and the straightforward nature of this lemon law case, the court agrees with Ford that counsel's total time billed is excessive and exercises its discretion to reduce Marisa Mittelman's total hours billed by 1.8 hours.

Ford additionally challenges attorney Ashley Sura's total of 3.1 hours billed for preparing Plaintiff's discovery requests. The court has reviewed the challenged entries and exercises its discretion to reduce Ashley Sura's total hours billed by 0.9 hours based on Plaintiff's counsel's use of boilerplate documents.

Next, Ford challenges the 1.1 hours billed by attorney Bobby Walker for auditing the billing records, removing privileged or sensitive communications, and accounting of events. The court finds that the total time billed here is reasonable and declines to reduce Bobby Walker's total hours billed.

Finally, Ford objects to the \$2,625.00 in fees anticipated by Plaintiff's counsel to review Ford's opposition, prepare a reply brief, and attend the hearing on the instant motion based on an estimated 5.0 hours. The court reduces the expected time necessary for a reply brief and motion hearing to 3.5 hours sua sponte as the 5.0 hours requested is not consistent with what

the court believes is necessary under the circumstances.

In sum, the court has reduced Jordan Cohen's total hours billed by 0.3 hours, Marisa Mittelman's total hours billed by 1.8 hours, Ashley Sura's total hours billed by 0.9 hours, Natalie Sanchez's total hours billed by 0.2 hours, and Richard Ruiz's total hours billed by 1.2 hours.

3. Overstaffing

Ford argues that Plaintiff has made "no meaningful effort to explain why a routine lemon law case required the services of five (5) attorneys." (Opp. 4:15-16.)

The court finds that Ford has failed to show that Plaintiff's use of five attorneys resulted in duplicative billing. Therefore, the court declines to reduce the fee award on this basis.

Accordingly, Plaintiff's Motion for Attorney's Fees is GRANTED in the amount of \$18,357.00, consisting of \$16,869.50 in previously incurred fees and \$1,487.50 in anticipated fees regarding the instant motion.

C. Costs

Here, Plaintiff submitted a memorandum of costs on March 30, 2026. Ford did not challenge any of the costs within Plaintiff's memorandum. The court has reviewed Plaintiff's memorandum of costs and finds the requested costs to be proper on their face.

Accordingly, Plaintiff's request for \$1,190.56 in costs is GRANTED.

CONCLUSION

Based on the foregoing, Plaintiff's Motion for Attorney's Fees and Costs is GRANTED in the total amount of \$19,547.56, comprised of \$16,869.50 in previously incurred fees, \$1,487.50 in anticipated fees regarding the instant motion, and \$1,190.56 in costs.

Moving party is ordered to give notice of ruling.